task ordinarily controlled by counsel and there was no evidence in the record of client fault, prior sanctions, or a pattern of willful delay. This, the court held, violated governing principles under CCP section 575.2, subdivision (b), and Government Code § 68608, subdivision (b), which require courts to impose sanctions that are proportionate and consider attorney fault separately from client responsibility. (See also, *Levitz v. The Warlocks* (2007) 148 Cal.App.4th 531, 535-36; *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 212; *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478.) So it is here. The procedural failures that led to dismissal were attributable to counsel, not Plaintiffs, and there is no evidence of prior sanctions or willful delay by Plaintiffs.

Defendants argue that vacating the dismissal would prejudice them because certain claims are now barred by applicable statutes of limitation and/or repose. The court acknowledges this argument but concludes that such asserted prejudice does not preclude mandatory relief under CCP section 473(b). The obligation to continue litigating the case is not cognizable prejudice. Rather, a party opposing relief must present evidence of actual prejudice such as missing witnesses, destroyed evidence, or similar circumstances affecting the ability to defend the case. (See, e.g., *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 740.)

Attorney Fees and Costs Under CCP § 473(b)

Where relief is granted under the mandatory relief prong of CCP section 473(b), the court shall direct the attorney to pay reasonable compensatory attorney's fees and costs to the opposing party. Because relief is granted based on an affidavit of attorney fault, Plaintiffs' counsel is obligated to pay Defendants' reasonable attorney fees and costs incurred in opposing the motion. Defendants may contest the tentative ruling and request a continuance of the hearing for the limited purpose of submitting a declaration addressing the amount of fees sought.

3. 9:00 AM CASE NUMBER: C23-00293
CASE NAME: INTERSTATE FIRE & CASUALTY COMPANY VS. CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MAGGIE BURRESON FOR DII CHEVRON ENVIROMENTAL AND CHEVRON USA
FILED BY: CHEVRON ENVIRONMENTAL MANAGEMENT COMPANY
TENTATIVE RULING:
Granted.

4. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: CONSOLIDATE RELATED CASES**
FILED BY: SEQUOIA EQUITIES, INCORPORATED
TENTATIVE RULING:
Before the Court is a motion by defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 5, 2026**.

Background

This action is a putative class action ("Class Action") filed by Kiara Ross, Felicia Costa, and Mark Peipowski ("Class Plaintiffs") against Sequioa Equities, Incorporated, Alder Creek Management, Inc., and numerous other entities alleged to be owners of apartment buildings in which the plaintiffs and